Gregory G. Garre argued the cause for petitioner. With him on the briefs were *Christina R. Gay*, *Eric J. Lewellyn*, and *Thomas R. Greer*.

Frederick Liu argued the cause for the United States as *amicus curiae* urging vacatur. On the brief were *Solicitor General Sauer*, *Assistant Attorney General Shumate*, *Deputy Solicitor General Gannon*, *Aimee W. Brown*, *Michael S. Raab*, *Cynthia A. Barmore*, *Lisa A. Tracy*, *Beth A. Levene*, and *Wendy Cox*.

William M. Jay argued the cause for respondent. With him on the brief were *Isabel M. Marin*, *William E. Evans*, and *David D. O'Donnell*.*

JUSTICE JACKSON delivered the opinion of the Court.

After commencing a bankruptcy case, the debtor must disclose his assets to the bankruptcy court to facilitate the creation of an accurate bankruptcy estate. These assets include any claims the debtor has against third parties, regardless of whether those claims have already been filed as part of an active lawsuit. The debtor also avers that he has no relevant assets other than those disclosed.

Page Proof Pending Publication

Occasionally, a debtor who has failed to disclose a claim to the bankruptcy court will later attempt to press that claim in court. When that happens, some lower courts have considered whether the lawsuit should be dismissed under the doctrine of judicial estoppel, which generally prevents a party from assuming inconsistent positions in successive litigation.

This Court has never applied judicial estoppel in the bankruptcy context. But we have suggested in other situations

---

*Briefs of *amici curiae* urging reversal were filed for the American Association for Justice by *Jeffrey R. White* and *Bruce Plaxen*; and for the Hon. Melanie Cyganowski et al. by *David R. Kuney*.

Briefs of *amici curiae* were filed for the National Association of Bankruptcy Trustees et al. by *Catherine L. Steege*; and for the National Consumer Bankruptcy Rights Center et al. by *James J. Haller*.

that judicial estoppel may be inapposite where the inconsistent position was the result of "inadvertence or mistake." *New Hampshire* v. *Maine*, 532 U. S. 742, 753 (2001). In this case, the Fifth Circuit applied a follow-on rule that the omission of a claim in the bankruptcy context will be considered inadvertent or a mistake in only two circumstances: (1) when the debtor was unaware of the underlying facts of his claim, or (2) where there was no hypothetical motive to conceal the claim.

We reject that approach. To determine whether an omission was inadvertent or mistaken for purposes of judicial estoppel, courts should look to the totality of the circumstances surrounding the omission. Thus, we hold that the Fifth Circuit's less holistic formulation was erroneous.

I

A

Page Proof Pending Publication

When a debtor files for bankruptcy, a bankruptcy estate is created comprising the debtor's property. 11 U. S. C. §541(a). That property encompasses "all legal or equitable interests of the debtor in property as of the commencement" of the bankruptcy case, including pending and unliquidated claims against third parties. §541(a)(1); see 5 Collier on Bankruptcy ¶541.07 (R. Levin & H. Sommer eds., 16th ed. 2026) (Collier). As relevant here, for bankruptcy cases proceeding under Chapter 13, the estate also includes property—and therefore claims—that the debtor acquires after the bankruptcy case commences but before it is closed, dismissed, or converted to a case under another chapter. §1306(a)(1); see also *Harris* v. *Viegelahn*, 575 U. S. 510, 514 (2015).

An accurate bankruptcy estate is necessary for orderly bankruptcy proceedings. Chapter 13 allows a debtor to retain his property if he proposes, and a bankruptcy court confirms, a plan for debt repayment over a 3- to 5-year period. §§1306(b), 1322(d), 1327(b). Creditors and the trustee (who

helps administer the bankruptcy proceedings) must understand the full scope of the debtor's assets to determine whether to support or object to the proposed repayment plan. See §§ 1302(b)(2)(B), 1324(a), 1325(b); 8 Collier ¶1302.03, at 1302–8 to 1302–9. The estate also provides valuable information to the bankruptcy court because the court may confirm the debtor's repayment plan only if the proposed repayments are "not less than the amount that would be paid" to creditors if the estate were liquidated under Chapter 7. § 1325(a)(4). In addition, the value of the estate helps the court evaluate whether to require the debtor to pay creditors back on a more accelerated timeline or with interest. See § 1322(b).

To facilitate the creation of an accurate bankruptcy estate, the Bankruptcy Code imposes disclosure obligations on debtors. For instance, debtors must file bankruptcy schedules listing their property. See § 521(a)(1)(B); Fed. Rule Bkrtcy. Proc. 1007(b)(1). One such schedule requires debtors to disclose all "[c]laims against third parties, whether or not [the debtor] ha[s] filed a lawsuit or made a demand for payment." Official Form 106A/B, Schedule A/B: Property, Pt. 4, Question 33. The schedule lists "[a]ccidents" and "rights to sue" as "[e]xamples" of possible claims. *Ibid.* (emphasis deleted). Debtors must swear, "[u]nder penalty of perjury," that the information provided is "true and correct." Official Form 106Dec, Declaration About an Individual Debtor's Schedules.[1]

Page Proof Pending Publication

B

Thomas Keathley and his wife filed a Chapter 13 bankruptcy petition in the U. S. Bankruptcy Court for the East-

[1] The parties here have proceeded on the understanding that the debtor has a continuing duty to disclose assets that arise after the initial filing of the bankruptcy petition (and therefore are part of the Chapter 13 estate). See Brief for Petitioner 5–6. We presume the same and do not opine on whether such a duty exists. See Brief for National Consumer Bankruptcy Rights Center et al. as *Amici Curiae* 6–12 (noting split on continuing duty to disclose).

ern District of Arkansas in December 2019. In April 2020, that court confirmed an amended repayment plan, providing for interest-free repayment of 100% of the creditors' claims over the course of five years.

In August 2021, Keathley was involved in a car accident in Mississippi with a driver employed by respondent Buddy Ayers Construction, Inc. Keathley retained a personal-injury attorney and informed his bankruptcy counsel that he intended to sue Buddy Ayers Construction. Even though Keathley's bankruptcy case remained open, neither Keathley nor his bankruptcy counsel disclosed the potential personal-injury claims to the Bankruptcy Court. Keathley then filed the instant personal-injury action in the U. S. District Court for the Northern District of Mississippi in December 2021, asserting claims for negligence against the company. Keathley did not notify the Bankruptcy Court of the existence of his claims at this point, either.

Page Proof Pending Publication

In March 2023, Buddy Ayers Construction moved for summary judgment on grounds of judicial estoppel based on Keathley's failure to disclose his personal-injury claims in the open bankruptcy proceeding. Keathley immediately filed an amended schedule notifying the Bankruptcy Court of his personal-injury claims. Then, in response to the pending motion for summary judgment in the personal-injury suit, Keathley explained that the omission had been inadvertent. In support, he submitted an affidavit attesting that, after he told his bankruptcy counsel about his personal-injury claims, he "believed [he] had done everything [he] needed to do." App. 184. He also filed an affidavit from his bankruptcy counsel noting that Keathley "received no benefit monetarily, or otherwise, from the nondisclosure." *Id.*, at 182. Based on this evidence, he argued that judicial estoppel was inappropriate.

The District Court disagreed. Relying on Fifth Circuit precedent, the court explained that the omission of a claim on the bankruptcy schedules will be considered the result of

inadvertence or mistake only if (1) the debtor did not know the facts underlying the claim, or (2) there was no potential motive to conceal the claim. 686 F. Supp. 3d 495, 497, 500–501 (ND Miss. 2023) (citing *United States ex rel. Long* v. *GSDMIdea City, LLC*, 798 F. 3d 265, 273 (CA5 2015); *Love* v. *Tyson Foods, Inc.*, 677 F. 3d 258, 262 (CA5 2012)). Applying that rule, the District Court found that Keathley concededly knew of the facts underlying his personal-injury claims and had a hypothetical motive to conceal: Keathley might have had to pay interest on his debts had the Bankruptcy Court and creditors known of the personal-injury lawsuit. The District Court therefore held that Keathley's omission was not inadvertent or a mistake and entered summary judgment for Buddy Ayers Construction based on judicial estoppel. 686 F. Supp. 3d, at 501, 503.[2]

The Fifth Circuit affirmed, relying on the same precedent as the District Court. 2025 WL 673434 (Mar. 3, 2025) (*per curiam*). Judge Haynes concurred based on her agreement that Fifth Circuit precedent dictated this outcome. But she expressed "doubt that the goals" of judicial estoppel were advanced by its application to Keathley's claims, given her view that there was evidence his omission was, in fact, an "honest mistake." *Id.*, at *8. Judge Haynes further noted that "[o]ther circuits take a more holistic approach than" the Fifth Circuit does when assessing the application of judicial estoppel in the bankruptcy context. *Ibid.* (collecting cases).

Page Proof Pending Publication

Much like the Fifth Circuit, the Tenth Circuit also considers an omission to be inadvertent only if the debtor lacked

---

[2] Keathley moved for reconsideration based on an affidavit he submitted from the staff attorney for the Chapter 13 Trustee in his bankruptcy case. The affidavit explained that it is common practice in the Eastern District of Arkansas for debtors to amend their filings to disclose postpetition personal-injury claims shortly before settlement or other disposition of the claims. The District Court denied the motion. 706 F. Supp. 3d 628, 630 (ND Miss. 2023).

knowledge of the underlying claim or had no potential motive to conceal the claim.[3] But five other Courts of Appeals conduct a more fact-specific inquiry and do not so stringently limit the analysis.[4] We granted certiorari to resolve this conflict. 607 U. S. 992 (2025).

II

A

Judicial estoppel is an "equitable doctrine" intended "to protect the integrity of the judicial process," both by "prohibiting parties from deliberately changing positions according to the exigencies of the moment," and by preventing the "risk of inconsistent court determinations." *New Hampshire*, 532 U. S., at 749–751 (internal quotation marks omitted).

Sometimes, as happened here, a debtor seeks to litigate a claim against a third party that he failed to disclose in his bankruptcy proceedings. Some lower courts apply judicial estoppel to bar such lawsuits, reasoning that application of the doctrine "raises the cost of lying" and "induces debtors to be truthful in their bankruptcy filings." *Cannon-Stokes* v. *Potter*, 453 F. 3d 446, 448 (CA7 2006) (internal quotation marks omitted).

Page Proof Pending Publication

The courts that apply judicial estoppel to claims in the bankruptcy context view the debtor's failure to disclose a particular claim as an "implicit representation" that the claim does not exist. 18B C. Wright, A. Miller, & E. Cooper, Federal Practice and Procedure § 4477.9 (3d ed. 2019 and Supp. 2026) (collecting cases). On this view, when the debtor files a lawsuit based on that claim, he has taken incon-

---

[3] *Eastman* v. *Union Pacific R. Co.*, 493 F. 3d 1151, 1157 (CA10 2007).

[4] *Martineau* v. *Wier*, 934 F. 3d 385, 393–396 (CA4 2019); *Stanley* v. *FCA US, LLC*, 51 F. 4th 215, 221 (CA6 2022); *Spaine* v. *Community Contacts, Inc.*, 756 F. 3d 542, 548 (CA7 2014); *Ah Quin* v. *County of Kauai Dept. of Transp.*, 733 F. 3d 267, 276–277 (CA9 2013); *Slater* v. *United States Steel Corp.*, 871 F. 3d 1174, 1189, and n. 17 (CA11 2017) (en banc).

sistent positions in the two judicial proceedings "by asserting in the civil lawsuit that he has a claim against the defendant while denying under oath in the bankruptcy proceeding that the claim exists." *Slater* v. *United States Steel Corp.*, 871 F. 3d 1174, 1176 (CA11 2017) (en banc).

Based on that understanding, those lower courts have developed a general rule for the application of judicial estoppel in the bankruptcy context: "If a plaintiff-debtor omits a pending (or soon-to-be-filed) lawsuit from the bankruptcy schedules and obtains a discharge (or plan confirmation), judicial estoppel bars the action." *Ah Quin* v. *County of Kauai Dept. of Transp.*, 733 F. 3d 267, 271 (CA9 2013).

B

While this Court has never applied judicial estoppel in the bankruptcy context, in a different context we left open whether it "may be appropriate to resist application of judicial estoppel" when the party's prior inconsistent position was due to "inadvertence or mistake." *New Hampshire*, 532 U. S., at 753. For purposes of this opinion, we assume without deciding that judicial estoppel can apply in the bankruptcy context and that "inadvertence or mistake" can function as an exception to that application. Operating under those assumptions, the Fifth Circuit's understanding of "inadvertence or mistake" is simultaneously too rigid and too broad.

Page Proof Pending Publication

The rigidity comes from the Fifth Circuit's failure to fully recognize that "judicial estoppel is an equitable doctrine." *Id.*, at 750 (internal quotation marks omitted). As such, its "examination must be made in the light of the recognized principles of equity." *United States Nat. Bank* v. *Chase Nat. Bank*, 331 U. S. 28, 36 (1947). Equity, we have said, "eschews mechanical rules; it depends on flexibility." *Holmberg* v. *Armbrecht*, 327 U. S. 392, 396 (1946). Thus, when a court conducts an equitable inquiry, it must act "on a case-by-case basis," considering all relevant facts and circum-

stances. *Holland* v. *Florida*, 560 U. S. 631, 649–650 (2010) (internal quotation marks omitted). In other words, equitable doctrines require room to consider all of the particulars.

By contrast, the Fifth Circuit's rule allows courts to consider only two circumstances when assessing inadvertence or mistake: whether the debtor knew of the underlying facts of the claim, and whether there was a potential motive to conceal the claim. See *In re Coastal Plains, Inc.*, 179 F. 3d 197, 210 (CA5 1999); *Love*, 677 F. 3d, at 262. And under this rule, a court may not look at any other evidence tending to show that the omission was inadvertent. That rigidity is out of step with equity. To determine whether the omission was inadvertent or a mistake, the Fifth Circuit instead should have examined the totality of the circumstances surrounding Keathley's failure to report his personal-injury claims earlier. See, *e. g.*, *Ah Quin*, 733 F. 3d, at 276 ("[R]ather than applying a presumption of deceit, judicial estoppel requires an inquiry into whether the plaintiff's bankruptcy filing was, *in fact*, inadvertent or mistaken, as those terms are commonly understood" (emphasis added and deleted)).

Pacer Proof Pending Publication

The Fifth Circuit's rule is not only overly rigid; it is also overly broad. In particular, the Fifth Circuit holds that an omission falls outside of the exception any time a debtor knows certain facts or could potentially benefit from nondisclosure of a claim. But it is rare for a debtor to be unaware of the underlying facts of his claim, and a debtor will almost always hypothetically benefit from not revealing such a claim to his creditors. In essence, then, the Fifth Circuit's approach is a one-size-fits-all test that requires courts to view as purposeful nearly every bankruptcy omission. Indeed, the decision below acknowledged as much, noting that, under Fifth Circuit precedent, the potential-motive element " 'is almost always met if a debtor fails to disclose a claim or possible claim to the bankruptcy court.' " 2025 WL 673434, *5 (quoting *Love*, 677 F. 3d, at 262).

The overbreadth of the Fifth Circuit's rule (the fact that it almost always is satisfied) makes it patently incompatible with an inadvertence-or-mistake standard, which suggests that circumstances—and outcomes—may vary. A near-dispositive criterion is a poor fit for a fair inquiry into whether an omission is *actually* the result of inadvertence or mistake.[5]

* * *

Today's decision is straightforward. The Fifth Circuit artificially narrowed its inquiry into whether Keathley's bankruptcy-schedule omission was the result of inadvertence or mistake by assessing *only* whether he had knowledge of the underlying facts or a potential motive to conceal his personal-injury suit. That was error. Accordingly, we vacate the judgment of the Court of Appeals for the Fifth Circuit and remand the case for further proceedings consistent with this opinion.

Page Proof Pending Publication

It is so ordered.

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring.

The Court's opinion correctly concludes that the Fifth Circuit's approach to judicial estoppel is not defensible on its own terms. I join it in full. I write separately to express doubt about the foundation of the doctrine of judicial estoppel. Judicial estoppel generally prevents a party from asserting a position in one lawsuit that contradicts its position in a previous proceeding. Lower federal courts have applied this doctrine broadly without clear authority to do so,

---

[5] The parties also dispute at some length whether bad faith is required for judicial estoppel to apply. See, *e. g.*, Brief for Petitioner 11–24; Brief for Respondent 20–35. In light of our narrow holding—responding only to the analysis used by the Fifth Circuit—we need not resolve any further questions about the application of judicial estoppel in the bankruptcy context.